

In Defense of Uncivil Disobedience

A night like others in the Parisian banlieue (suburb) of Aulnay-sous-Bois: police stop youths and ask to check their ID, suspecting drug dealing. Théo L., a twenty-two-year-old Black social worker with no criminal record is arrested. An onlooker films the arrest, showing the young man tear-gassed, forced to the ground, and beaten by four policemen. Later Théo would tell TV interviewers that police hit him repeatedly, spitting racist insults. At some point, one of the officers took his telescopic baton and “he drove it into my buttocks . . . I had no strength left. It was as if my body had left myself. I thought I was going to die,” Théo said from the hospital where he was treated for a “deep anal tear.” The officers handcuffed him and took him to a police car, where he was again insulted, spat at, and beaten “in the private parts.”

Théo’s brutal arrest and rape in February 2017—which the French police called “an accident”—triggered protests against pervasive and systemic police brutality in several Parisian banlieues. In Bobigny, Argenteuil, and Saint-Denis, protesters and the anti-riot police clashed: police tear-gassed protesters, who in turn hurled bottles and stones at police. One resident described “young people with their faces hidden behind scarves carrying iron bars. There were bins filled with smoke overturned on the ground.” Youths burned cars and buses, ransacked stores, and attacked police patrols. A public bus

driver and a journalist covering the demonstration were injured. The police arrested dozens of protesters, including minors.

Even when their participants claim to be reacting to social injustice, riots—and the acts of looting, vandalism, property damage, and violence they comprise—are typically seen as politically counterproductive and morally impermissible. Political riots such as the French banlieues riots of 2017 and the ones that shook France in 2005 after the death of two teenagers during a police chase are an archetype of uncivil principled disobedience. I aim to show that some types of uncivil disobedience, including political riots, vigilante self-defense, whistleblowing, sanctuary assistance, and graffiti street art, can be justified—not in exceptional circumstances but systematically, and even in supposedly legitimate, liberal democratic states.

CONSTRAINTS

There is, we are told, a moral duty to obey the law in legitimate states—a duty grounded in widely accepted normative principles. It is my claim that these same principles can justify and even require resistance in the face of injustice, including resistance through principled disobedience. In later chapters, I will examine how these four grounds—the duty of justice, the duty of fairness, the Samaritan duty, and associative duties—justify and constrain the use of principled disobedience to resist injustice. For the moment, though, I wish to address some basic constraints on principled lawbreaking that apply especially to uncivil disobedience. These constraints allow us to distinguish between, say, the Ku Klux Klan's vigilante terrorism and the self-defensive vigilantism of the Deacons for Defense and Justice under Jim Crow, or between British feminist street artist Bambi's politically conscious graffiti and swastika vandalism.

Resistors must act with respect for other people's interests, including, but not limited to, their basic interests in life and bodily integrity; their interests in non-domination and in choosing the values that shape their lives; and their interest in protection by a stable, secure system of rights. That is, these basic human interests constrain both the legitimate goals and the appropriate means of resistance, and one should accept and seek to protect these basic interests when engaging in principled disobedience.

Of course resistors always act for the sake of some interests—the question is what kind of interests they pursue (Are they basic human interests or special interests of privileged groups?), and how to weigh these against other important interests when they come into conflict. Thus disobedience may affect the majority's interest in a stable legal system, but principled lawbreaking may sometimes be necessary to protect people's basic interests in life and bodily integrity. One may have to use force to defend oneself or others. And some violence, such as well-targeted destruction of property or the forceful removal of scabs during a strike, may be justified on balance to secure people's fundamental interest in non-domination—say, in having some control over the decisions that affect them.¹

Resistors should generally seek the least harmful course of action feasible to achieve their (legitimate) goal, that is, from among those courses of action that have a reasonable chance of success. This constraint does not rise to the level of necessary condition for the justification of principled disobedience, in part because agents may sometimes justifiably settle for second or third best if, say, *the* least harmful course of action demands too much sacrifice on their part. That the course of action should have a reasonable chance of achieving the goal of resistance should not be misunderstood: it does not require that every act lead directly to reform or directly lessen oppression. Recall the variety of goals that may motivate resistance. A small act of everyday resistance, such as confronting a man's catcall

or misogynist tweet, may only get one harassed; it certainly will not, in itself, change sexist mores. Yet its aim may simply be to force this man to reflect on his treatment of women. And it may be that an aggressive confrontation, likely to further antagonize the man, would not have a reasonable chance of succeeding at making him think, but that it would be successful if the goal is simply for the woman to assert her dignity and express anger at being objectified. In short, the success of resistance should not be measured solely in terms of the (good) social consequences it brings about (through direct action or policy reform): it may instead be measured by whether and how well it gets its message across to its intended audience (including, at the limit, oneself).

Note what respect for people's basic interests does *not* necessarily entail: it does not require that disobedients express themselves in a respectful tone, demonstrate moral seriousness, and exemplify self-restraint. The latter are demands of civility (they may also be a matter of political efficiency). One may respect people's basic interests uncivilly, in an offensive tone, using vulgarity and humor, expressing anger and even rage. Incivility does not necessarily violate people's basic interests.

IN DEFENSE OF (UN)CIVIL DISOBEDIENCE

Disobedience—even principled and civil—is generally conceived as wrongful for at least four reasons. First, disobedients violate the moral duty to obey the law, which binds citizens in legitimate states; second, disobedience undermines law and order and thereby destabilizes society; third, disobedients flout democratic processes; fourth, disobedients threaten “civic friendship,” the social glue and ethos that binds people together. Champions of civil disobedience

have responded to each objection successfully: today, few deny that civil disobedience can be justified and has a role to play in liberal democracy. But their justifications apply beyond the boundaries of civility, to justify some types of uncivil disobedience.

The Duty to Obey the Law

Many theorists believe that disobedience violates our political obligation, the moral duty to obey the law. In their view, it is essential that citizens of pluralist societies, in which people disagree about matters of justice, recognize this duty. Yet philosophers agree that the duty to obey the law (if it exists) is defeasible. In particular, it does not arise where injustice is severe and persistent. Civil disobedience can thus be justified at least where the moral duty to obey is nonbinding.

But this is not all: many theorists argue that civil disobedience is compatible with the moral duty to obey. For instance, David Lefkowitz has articulated a disjunctive account of political obligation according to which citizens of legitimate liberal democracies have a moral duty either to obey the law or to disobey it civilly.² The moral right to civil disobedience embedded in this account rests on citizens' basic right to political participation.

Importantly, in some cases, citizens might better respond to the normative principles that support the duty to obey the law by engaging in principled disobedience—civil or otherwise—rather than by complying with the law. This is what I show in chapters 3–6: that we should expand the concept of political obligation to include duties to resist injustice and disobey the law, even in liberal democracies, and that these duties rest on some of the same grounds commonly used to support the moral duty to obey the law.

Free-Riding

A second objection to disobedience is that it is a form of moral self-indulgence akin to free-riding: by according oneself a larger say in public matters, the agent objectionably allows a personal exception to prevailing rules.³ The agent claims, in effect, to better understand what the public good requires than do fellow citizens. Asserting such privilege amounts to a violation of fairness or mutual reciprocity.

But civil disobedience has been adequately defended against such claims, and the same defense might be applied to uncivil disobedience: the disobedient agent does not profit from lawbreaking and indeed bears significant burdens and risks, including social sanctions, arrest, and punishment.⁴ Let me add a caveat: the requirement that the agent not personally gain from disobedience is in fact problematic. People, especially those oppressed, have a lot to gain from the establishment of justice, including better life prospects, improved material conditions, and heightened self-respect. There is obviously nothing problematic with such personal investments in anti-oppression struggles.

In any case, the objection that unlawful resistance involves making oneself an exception or free-riding on others' compliance and thereby failing to treat others as equals does not withstand scrutiny. Agents often resort to disobedience because they, or those on whose behalf they act, or with whom they stand in solidarity, are marginalized and excluded, deprived of a say in the decisions that affect them. The oppressed are the ones treated as less than equals, and therefore disobedience intended to protest this inferior treatment cannot reasonably be thought of as violating mutual reciprocity.

Noncommunicative uncivil disobedience, such as direct action, however, calls for a different kind of response to the free-riding objection, since it does not necessarily seek to denounce the marginalization of some members of the community. For instance, agents

providing covert assistance to migrants or engaged in vigilante self-defense aim first and foremost to prevent harms. Their apparent disregard for laws and the outcomes of democratic processes may seem like an assertion of moral superiority, a way to say, “I know better than everyone else what is right and wrong.”

But this objection conceals the targets’ own responsibility for the harms agents seek to prevent. When disobedients are justified, it is typically because the state endangers or harms some people or unjustly fails to protect them from harm. Thus the Lavender Panthers existed only because—and so long as—the San Francisco police did not intervene to protect gays from homophobic violence. The first sanctuary movement grew in the 1980s to help refugees from Central America who, although they were fleeing civil conflicts partly caused and sustained by the United States, were refused asylum in the country. Judging them as presumptuous and self-righteous seems misguided and unfounded.

If this is right, then cases of justified uncivil disobedience do not involve agents’ making exceptions of themselves or free-riding on citizens’ compliance with the law. Indeed, I will argue in chapter 4 that, under unjust sociopolitical conditions, citizens’ compliance with the law, not disobedience, is akin to free-riding.

The Rule of Law

Another objection is that any disobedience—be it criminal or principled, civil or uncivil—sows anarchy and invites violence. A society where everyone disobeys all laws they find unjust would be no better than the state of nature, where everyone individually decides what is right and wrong.⁵ States cannot tolerate such exercise of discretionary judgment. If one violates the law each time one thinks it is unjust, one destabilizes society and undermines law and order. Doing

so is wrong because it prevents the legal system from performing its essential function of protecting rights.

In response, republican and liberal theorists have argued that, far from undermining the stable system of rights, civil disobedience can instead strengthen it. For Hannah Arendt, mass civil disobedience always occurs under unstable political circumstances and ultimately stabilizes society by reenacting the horizontal social contract (whereby the multitude becomes a people) and strengthening civic bonds.⁶ Ronald Dworkin conceives of civil disobedients as engaged in constitutional disputes over the law and contributing in that way to law's integrity.⁷ And Scheuerman argues that, far from undermining it, "civil disobedience buttresses the rule of law," as "fidelity to the law" demands "of conscientious political actors that they push for dramatic change that might deepen both law's legitimacy and its efficacy."⁸ Beyond the particulars of these arguments, the potential of civil disobedience to protect rather than undermine the rule of law is now widely accepted in the literature, and to a lesser extent in public discourse.

What about uncivil disobedience, though? Can it also exemplify respect for the rule of law and serve to bolster law's integrity? I believe it can. Consider one type of uncivil principled disobedience purporting to preserve the rule of law: government whistleblowing, defined as unauthorized seizure and disclosure of state-classified information.

There are many plausible candidates for unauthorized whistleblowing that strengthened the rule of law: Daniel Ellsberg's leaks of the Pentagon Papers, which uncovered the state's commission of war crimes in Vietnam, Cambodia, and Laos, as well as deception at home; Deep Throat's leaks about the Watergate scandal, which resulted in punishment for others' lawbreaking; and Snowden's whistleblowing on the NSA's massive, unconstitutional domestic surveillance program.

Leaks of this nature, which expose serious wrongdoing and abuses, promote the rule of law. While many people describe instances of government whistleblowing they approve of as civil disobedience, in part because of their common potential to support the rule of law, it is important not to confuse the two. Government whistleblowing usually fails to adhere to norms of civility (especially publicity and non-evasiveness) and poses threats to national security by irreversibly undoing the secrecy the state had determined appropriate or necessary. Through their disclosure, government whistleblowers thus usurp the power of the state to determine, and to have exclusive authority over, the boundaries around state secrets. Government whistleblowing is thus typically uncivil in some ways, but it can be justified, like civil disobedience, on the grounds that it strengthens the rule of law. (In chapter 3, I will base the justification of whistleblowing more broadly on the duty of justice.)

Democracy

A fourth objection to disobedience is that it erodes democratic authority. By flouting democratic lawmaking processes, and refusing to comply with their outcomes, disobedients make themselves enemies of democratic ideals and undermine the conditions for democratic concord.

Liberal philosophers such as Rawls generally concede this objection: they view civil disobedience as essentially antidemocratic but highlight its potential to enhance justice, against flawed majoritarian decisions. These theorists stress that, by disobeying civilly, the agent communicates that she is neither disobeying lightly nor taking advantage of others' compliance with the law.

Republican and democratic theorists have articulated their alternative accounts of disobedience largely in response to this objection

concerning democracy. They have shown that, far from threatening democracy, much civil disobedience purports to invigorate democratic institutions, for instance by combatting the rigidifying tendencies of state institutions and highlighting democratic deficits.⁹ These theorists often use alter-globalization, anti-nuclear, and Occupy activism to illustrate this potential of civil disobedience. They make two important points. First, civil disobedients often protest precisely a lack of democracy, such as their exclusion from collective decision-making processes, and can thus advance democratic causes. Second, civil disobedience should be conceived as an exercise in political participation, not as an extra-institutional form of action that is only appropriate when normal political processes fail.

I reflect later in the chapter on the question of whether some communicative acts of uncivil disobedience should be conceived as a form of political participation. But for now, I simply want to show that the first point about the democratic potential of civil disobedience can apply to uncivil disobedience, too. To this end, Cornell Clayton persuasively argues that incivility is a “symptom of division,” not the source of it. To dismiss incivility as a threat to an otherwise-stable democracy is most likely to assert stability (the kind that stems from a shared commitment to mutual reciprocity) where it has already been lost. Clayton further notes that “uncivil behavior has often advanced democratic causes” in contexts of division.¹⁰

A look at historical and current practices of resistance indeed suggests that agents may choose uncivil forms of disobedience to the same democratic effects that theorists attribute to civil disobedience. The suffragists escalated from words to deeds—first civil then uncivil disobedience—to demand the democratic franchise. Some of their uncivil acts, such as storming legislative assemblies and electoral precincts, as well as burning with acid the golf course and bowling greens frequented by Members of Parliament, were

clearly intended to assert political agency and protest exclusion. More recently, hacktivists such as the late Aaron Swartz have used digital disobedient tactics—mostly uncivil—to protest the illegitimacy of online governance and invite fellow citizens to understand, care about, and participate in the effort to democratize the internet. Some guerrilla communication tactics, such as those of ACT UP (the AIDS Coalition to Unleash Power), may also be framed as uncivil protests against government apathy in the face of the AIDS crisis and against the public's wrongful indifference to the fate of the LGBTQ population (a violation of the democratic imperative to treat everyone with full concern and as equals). For instance, a 1989 ACT UP protest against pharmaceutical price-gouging on the floor of the New York Stock Exchange stopped trading for the first time in history. Later that year, nearly five thousand protesters stood outside New York's St. Patrick's Cathedral to denounce the Catholic Church's opposition to safe sex education, while a few dozen ACT UP and WHAM! (Women's Health Action and Mobilization) activists went inside to interrupt mass, chant slogans, lay down in the aisles, and even desecrate communion wafers. As these examples suggest, there may be uncivil pursuits of democratic inclusiveness, agenda-setting, and other measures to improve democratic legitimacy.

To recap, none of the four objections—from the duty to obey, free-riding, the rule of law, and democracy—sets a viable moral prohibition against principled disobedience. Meanwhile, the arguments offered in response by champions of civil disobedience can be extended to justify some uncivil forms of principled lawbreaking. However, one might object that this extension of the instrumental value of civil disobedience to uncivil disobedience ignores the moral significance of civility. In the next section, I respond to arguments for preferring civil over uncivil disobedience and identify some valuable uses of incivility.

WHO'S AFRAID OF INCIVILITY?

Effectiveness

It is almost an article of faith that incivility is counterproductive. This is clearest in the ordinary (and near-universal) approval of nonviolent resistance and disapproval of violent resistance. Some empirical evidence backs up the point. Analyzing 323 twentieth-century violent and nonviolent civil resistance campaigns, Erica Chenoweth and Maria Stephan find that nonviolent campaigns that have reached a significant size are twice as likely to succeed as violent campaigns. (It is worth noting, however, that most of the civil resistance movements they classify as nonviolent, from the anti-apartheid struggle in South Africa to the First Palestinian Intifada, often in fact include violent flanks. A movement is violent, in their view, if it rests primarily on armed insurrection.) While many violent decolonization movements were successful in the 1970s and 1980s, the success of violent resistance campaigns has since declined. For their part, nonviolent campaigns have become increasingly successful since the 1950s, and especially since the end of the Cold War.¹¹

While this statistical argument for nonviolence holds across sociopolitical contexts, political scientists argue that violence is especially counterproductive in liberal societies. Chenoweth has recently warned against anti-Trump resistance by means of uncivil, “black block” tactics such as Nazi punching, street fighting, and rioting.¹² The main rationale is that the public is turned off by violent protests, which therefore risk undermining the objectives of an otherwise-nonviolent movement. She and Stephan estimate that available social scientific and historical evidence supports the “negative radical flank effect” better than the “positive radical flank effect”: that violence decreases rather than increases the leverage of challengers, by threatening mass mobilization.¹³

These are important findings. But note that the argument asserts equivalence between civility and nonviolence. When we keep the two features distinct, we realize that nonviolent acts of uncivil principled disobedience—such as leaks, which proliferate in Trump’s White House, and guerrilla communication—are not singled out as problematic and may be useful to civil protests. In addition, not all principled disobedience is communicative, and that which is nonviolent and covert is unlikely to be detected by the public and to have the negative effects supposedly associated with failures of civility.

More generally, effectiveness may not be measured solely in terms of contribution to a mass civil resistance campaign. Individual actions may be socially beneficial (“effective”) whether or not they lead to reform. Thus the Lavender Panthers’ organized use of self-defensive violence against homophobic aggressors in San Francisco in the 1970s can be justified, even if violence shouldn’t be used in the larger political struggle for gay rights. Covert (uncivil) disobedience—such as that undertaken by sanctuary workers as they provide food, shelter, and legal aid to unauthorized migrants—can directly frustrate injustice and benefit people in dire need in ways that are not available to civil disobedients.

So the empirical argument for the superior effectiveness of non-violent resistance and civil disobedience in the context of large movements does not suffice to establish uncivil disobedience’s ineffectiveness or counterproductivity. In fact, uncivil disobedience may be effective for other purposes.

Forward-Looking Concerns

Why prefer civil over uncivil disobedience? Another instrumental or pragmatic rationale points to the socially beneficial consequences of civil disobedience as compared with uncivil disobedience. It comes in two versions, which are both grounded in forward-looking

concerns, and boil down to the notion that resisters should choose courses of action that enact and foster the just society they aspire to.

One version of this pragmatic argument is encapsulated in the principle “the means should prefigure the end.” According to this principle, which is generally attributed to political anarchists, the values guiding resistance in liberation struggles should be those animating the ideal world. The “should” here is pragmatic or prudential: one simply cannot achieve a just, egalitarian society free from oppression and state violence through a movement that is hierarchically organized and that uses violence to dominate others. In the words of James Guillaume, a friend and collaborator of Mikhail Bakunin, “How could one want an equalitarian and free society to issue from an authoritarian organization? It is impossible.”¹⁴ From this perspective, prefiguration is a necessary condition for liberation movements’ success (at least where ideals of justice, freedom, and equality are concerned). More basically, a struggle whose participants routinely violate its expressed ideals falls prey to charges of inconsistency and hypocrisy, which are likely to diminish public support and to affect the movement’s legitimacy. This prefiguration argument can thus support the superiority of civil over uncivil disobedience, presuming that one seeks a civil future characterized by democratic concord.

On the other version of the pragmatic argument, even if the ruling group’s mistreatment of a subordinated group warrants revolutionary activity, and even if revolution could succeed (contrary to the prefiguration argument), there are still good forward-looking reasons for resisters to exercise restraint and disobey civilly. Andrew Sabl develops this argument for civil disobedience in the context of the “piecewise-just society,” which involves “fair treatment, mutual cooperation, and a sense of justice by a ruling group with respect to its own members, simultaneous with a cruel and near-absolute tyranny towards people outside its own membership.”¹⁵ Powerful

members of society, by dominating and brutalizing other groups in society, may well have made themselves liable to violent resistance. But the fact that they have shown themselves capable of governing on fair terms of cooperation within their own group offers reasons to believe in their capacity “to extend this habit to their relations to other groups,” and thus to disobey civilly, in a way that treats current oppressors as future equals.¹⁶ According to Sabl, “a regard for future possibilities,” especially “the desire not to foreclose future cooperation,” underpinned King’s civil rights movement, for instance.¹⁷ In short, civil disobedience offers the best (perhaps the only) chance of fostering the prospects for post-struggle democratic concord, by displaying equal concern for all and a commitment to fair cooperation in the struggle. I address this second point in the next section, where I contend that sometimes powerful members have shown themselves capable of governing fairly among equals, but not willing to extend this capacity beyond their own group.

One strategy to respond to the prefiguration argument for civil disobedience consists in denying that resistance need be guided by the values it aims to promote. History casts doubt on the anarchist argument that freedom from oppression is not possible unless resisters abide by the ideals that motivate their struggle in the first place, as many successful decolonization movements involved violence (and there is no reason to attribute the extent to which some of these movements historically failed to establish stable democratic regimes to their use of violence in the struggle). Norman Geras defends revolutionary violence on the grounds that the means “reflect their own beginnings”—that is, the oppression and tyranny that revolutionaries seek to overcome.¹⁸ Lisa Tessman has argued that resistance to oppressive circumstances may need to be guided by values that we would normally condemn—such as rage and hatred—in order to successfully lead to a just, hate-free society.¹⁹ Angela Davis’s vindication of African Americans’ armed self-defense against racist

violence and Ta-Nehisi Coates's skepticism toward ubiquitous calls for nonviolence in a society founded upon and engaged in violence illustrate this strategy at work.

It is also not clear that activists disposed to use some uncivil, including violent, methods in the struggle for emancipation are thereby exhibiting inconsistency or betraying their ends. For instance, did female suffragists who burned golf course turfs with acid and engaged in other acts of sabotage and destruction reveal their unfitness to cooperate with men in the gender-just society they envisioned? Opponents thought so, calling the suffragists "unladylike" and "unnatural" and successfully committing some of them to insane asylums. These opponents claimed that women's uncivil disobedience was a living refutation of their feminist ideal of gender equality. Yet nothing supported these judgments. Uncivil disobedience neither necessarily reflects problematic ideals and goals nor necessarily thwarts the possibility for future cooperation with fellow citizens.

(In)civility and Civic Friendship

Civil disobedience is supposed to be better than uncivil disobedience not just because, as we have seen, it leads to superior outcomes, but also because civility is a moral duty in liberal democracy. Citizens of liberal democracies have a special duty to comport themselves in ways that nurture and preserve civic bonds. Aristotle talked about "civic friendship" to describe citizens' bonds in just polities, their concern for each other's flourishing (they "wish their fellow citizens well"), and their shared values and sense of justice.²⁰ The modern, liberal version of civic friendship is thinner but still important: it consists in citizens' willingness to live together despite their differences and their common endorsement of mutual reciprocity.²¹

Law-abidance and civil interpersonal relations cement the ties of civic friendship in large modern states, while refusal to abide by the

law and incivility dissolve these bonds. In Rawls's words, "[r]esistance cuts the ties of community."²² But liberal theorists showed that, by acting civilly, disobedients still demonstrate their commitment to mutual reciprocity. The civility of civil disobedience, in short, defuses its tendency to erode civic bonds and destabilize society. Theorists thus carved a special niche for civil disobedience as the only form of unlawful resistance compatible with the demands of life in a liberal democracy. (Conscientious objection might be viewed as another form, but to the extent that it is to be not simply tolerated but also legally protected in liberal societies, it should not count as unlawful resistance.)

Uncivil disobedience, by definition, violates civility, and so could potentially damage civic friendship. One might respond by examining contexts and types of uncivil disobedience that are unlikely to undermine civic friendship, such as covert assistance to undocumented migrants. But let us instead agree that some types of communicative uncivil disobedience—urban riots and anti-police rallies, for instance—are in fact likely to undermine civic friendship. My contention is that this may be a virtue rather than a problem: in some circumstances, uncivil disobedience may appropriately highlight—and, yes, undermine—all-too-flimsy or illusory ties of civic friendship. It may do so in ways that advance the cause of justice and democracy. But even where there is no hope of sociopolitical reform or moral suasion, uncivil disobedience may still have intrinsic value insofar as it constitutes a meaningful expression of political solidarity and assertion of agency in the face of injustice.

There is a place for uncivil disobedience in liberal democratic societies when the following conditions apply: the public is assured of the state's commitment to respecting everyone's full and equal status, a commitment typically embedded in a constitution or other basic law that guides institutional design and lawmaking; some citizens are effectively (*de facto* but not *de jure*) denied full and equal status;

and the injustice of this denial is not publicly recognized, perhaps because that injustice is not deliberate but results from the interplay of social practices and institutional structures, as in cases of structural injustice. Under these circumstances, the majority may be bound by civic friendship, but for oppressed minorities, it is an illusion.

In this case, the oppressed minority might fruitfully resort to civil disobedience, and no doubt observers will counsel that doing so provides the best chance of winning over the majority, based on the forward-looking concerns previously articulated. But uncivil disobedience might be more effective because of its ability to radically disrupt the status quo. Uncivil disobedients force the community to confront the disconnect between its reality and its professed ideals. Put another way, by appearing to question civic friendship, they question the authenticity of the community's commitment to that friendship. Incivility calls civility's bluff.

Uncivil disobedience also questions the rules of public engagement, the standards and boundaries of civility and public reason: who gets to speak, as well as where, when, and how. In doing so, uncivil disobedience helps to isolate the deceptions of civic friendship. Pussy Riot and Femen model this powerfully. Their sensational "sextremist" acts reveal the patriarchy that actual civic friendship accommodates and present that evil as an adversary to confront and offend. By not playing by the rules, uncivil disobedients point to the exclusionary effects of established rules and invite their rethinking. They contest and disrupt the moral and political consensus.

Some democratic theorists like Celikates insist that civil disobedience, broadly conceived to include what is on my view uncivil disobedience, can achieve this sort of disruption. But I think it is important to distinguish civil from uncivil disobedience, in order to denounce disingenuous brandings of incivility and explore the distinct potential of acts of uncivil disobedience. BLM protesters marching with their hands raised in surrender and chanting "Hands up, don't

shoot!” have been called “troublemakers” and deemed uncivil. The lie of civic friendship is clear in the refusal to grant civility to opponents of the status quo. What ties of community are there if the majority cannot bring itself to hear oppressed minorities even when they follow all of the strictures of civility?

Compare these civil protests to uncivil events loosely associated with, but not organized by, the Movement for Black Lives: rock-throwing, looting, and rioting, as in Ferguson, Baltimore, Charlotte, and Milwaukee in the aftermath of fatal instances of police violence against Blacks. Avia Pasternak refers to the unrest in these US cities, as well as the uprisings in the Paris banlieues in 2005, as “political rioting,” defined as “a form of political protest against injustice, which involves the public and illegal use of collective violence, and which aims to express outrage, frustration and defiance of the law.”²³ Pasternak argues that political riots can be partially justified in the face of serious and persistent injustice, in light of the valuable goals they can serve: democratic inclusion, expression of collective defiance and disrespect, and legal reform. The riots in Ferguson, Baltimore, and the French banlieues may be seen as aiming at all three goals: inclusion of poor Black and Brown urban youth in the public sphere, popular expression of frustration at and distrust of the state, and direct democratic community control of law enforcement agencies.

The rioters issued their demand to end police brutality by putting into question the society’s professed commitment to mutual reciprocity and forcing the wider population to examine who exactly is tied together by the bonds of civic friendship. The only honest response, these riots suggest, is not everyone. Those left outside the bonds must use means that civic friendship abhors because they are not allowed to participate on civil terms. The civil protests of BLM may well have articulated the same claim, but political riots were more successful in projecting the seriousness of the problem, in part

by threatening further disruption. Civil disobedients cannot vex the status quo in the same way. As Susan Bickford has argued, civility (or “niceness”) “can make people less likely to perceive actual injustice and oppression”²⁴—and, I shall add, less likely to perceive the urgency of certain rights claims.

That society took notice of the riots does not mean they achieved their goals. The frustration expressed in rioting has not induced any recognition and shame in White Americans’ (or Frenchmen’s) consciousness. In fact the public now views protests against police violence even more negatively than in 2014, at the start of the BLM movement. According to a Harvard-Harris survey conducted in July 2017, a majority of Americans (57 percent) “feels unfavorable towards Black Lives Matter protests.” Only 35 percent of Whites feel favorably toward the movement.²⁵ The problem is not simply that most people remain unmoved; it is that they don’t hear the rioters’ speech—don’t take the riots to be conveying anything but violence. This lack of reception—often the result of moral and epistemic deafness to Black suffering, which Charles Mills calls “White ignorance”—helps to clarify why we should not prioritize civic friendship: the inability to recognize struggle even when it is declared straightforwardly is symptomatic of the divisions within the polity.²⁶ Civic friendship is dead long before rioters come to bury it.

Hence my defense of uncivil disobedience—including of some political riots—does not rest on the larger community’s successful uptake of, let alone political or moral conversion in response to, messages conveyed uncivilly. Uncivil disobedients may have no hope of bringing about any changes anyway. They may have no reason to believe in the dominant group’s willingness to include marginalized and powerless groups into the social cooperative venture. Recall that the forward-looking argument for civil disobedience is based on the oppressors’ demonstrated capacity to govern as full and equals

among themselves, and expected capacity to extend this kind of government to everyone. But this capacity to govern fairly, without the *willingness* to do so, hinders rather than hints at future concord. Yet it is worthwhile for uncivil disobedients to express their indignation at the inauthenticity of the public commitment to mutual reciprocity, even if it turns out to be counterproductive to the goal of persuading the public.

Protesters' central goal is often to grow the movement's base rather than to garner public support. "The most likely audience to join the cause," Amna A. Akbar notes about the protests associated with the Movement for Black Lives, "is not White people, but other Black folks."²⁷ It is easy to overlook this "internal audience" of protests while focusing on messages to the larger public. Political riots too have an internal audience: fellow oppressed people. It is to the latter that rioters address themselves, when they highlight illusory ties of civic friendship and repudiate society's unfair treatment of certain groups. By pointing to a shared landscape of oppression, uncivil disobedients further express solidarity with fellow oppressed people. Finally, their expressions of disrespect and anger may be seen as assertions of agency and dignity in the face of threats to both. Certain kinds of uncivil disobedience are thus non-instrumentally valuable—as warranted judgments about society's failures, as expressions of solidarity, and as affirmations of agency.

To recap, acts of uncivil disobedience do not necessarily erode civic friendship, but even when they do, they may be justified on the (broadly liberal and democratic) grounds that they contribute to advancing justice and democracy, by jolting the public into recognizing pressing claims of oppression. And even if acts of uncivil disobedience are counterproductive to the broader goal of affecting sociopolitical change, they may still constitute intrinsically valuable expressions of dissent, solidarity, and agency. Acts of uncivil

disobedience that threaten a concord that wrongly excludes some people can thus be justified, under certain circumstances.

Traditional liberal theorists are not wrong to understand civility as a good thing. We should not underestimate the importance of respect for others as equals or of a commitment to mutual reciprocity. The trouble is that we, even those of us in democratic societies, do not live in a world of equals. The constraints civility imposes on subjects of pluralist modern societies are reasonable under conditions of basic equality, such as among privileged and powerful populations (although the latter sometimes may elect, and even ought, to join uncivil protests in solidarity with those oppressed). Indeed civility reasonably constrains the behavior of members of society who are secure in their position of privilege or power, especially as they relate to disadvantaged members of society. But those who shoulder the burdens of oppression cannot reasonably be expected to satisfy the demands of civility, since these demands aim to preserve civic bonds that do not extend to them and even serve to maintain their oppression (recall the ideological function of the widespread calls for civility which I described in chapter 1). Incivility may therefore be appropriate—and uncivil disobedience may be justified—where agents are oppressed, silenced, and otherwise marginalized.

IMPLICATIONS

What follows from this defense of uncivil disobedience? Agents engaged in justified acts of uncivil disobedience are doing the right thing. They may be doing something presumptively wrongful (breaking the law, offending, resorting to force or coercion), but they are not doing wrong on balance, under the circumstances. One might be tempted to say that they have an excuse for what they did. But excuses are

inseparable from admissions of wrongdoing. To excuse someone is to explain why they had reason to believe they were doing the right thing even though they didn't. Justifications are different: they point to the reasons for acting the way the agent in fact acted. The next four chapters are devoted to identifying these reasons: they show that the duty of justice, the duty of fair play, the Samaritan duty, and political associative duties, which are commonly used to ground obedience, provide weighty, binding reasons for resisting injustice, including through principled—civil and uncivil—disobedience.

Agents who engage in justified acts of uncivil disobedience deserve praise in recognition of the difficulties of fulfilling one's political obligations under unjust conditions (chapter 7 is devoted to these difficulties). What does this imply for how the state should treat them? I will not say much about this important question, mainly because I think we need to change hearts and minds about uncivil disobedience before having any chance of changing the law. That is why the book is devoted to political ethics, not legal issues.

But, to speak to the matter only briefly, I believe the state should treat uncivil disobedience differently from civil disobedience. Recent theorists defend a moral right to engage in civil disobedience, on the basis of which civil disobedients deserve special treatment from the state. Lefkowitz, who derives the moral right to civil disobedience from the more general right of political participation, contends that civil disobedients have a moral claim against punishment (i.e., condemnation) but not penalty, which states impose for the purpose of deterring conduct.²⁸ William Smith likewise conceives of the moral right to civil disobedience as an "important component of the bundle of rights to political participation that would be affirmed by a reasonable conception of justice," and argues that it protects citizens from the imposition of punishment but is compatible with moderate penalties.²⁹ For Brownlee, who bases the moral right to civil

disobedience on a humanistic principle of respect for agency and dignity, this right implies a claim right against both punishment and penalty. She defends two criminal defenses for principled disobedience, one exculpatory—the “demands-of-conviction defense”—and one justificatory—the “necessity defense.”³⁰

The moral right to civil disobedience, whatever its basis, implies the permissibility of civil disobedient acts, independently of their justification. I do not defend such right to uncivil disobedience, since when uncivil disobedience is not justified, it is often also morally impermissible. But when uncivil disobedience is morally justified, in my view, agents ought not to be punished by the state. This does not mean that agents should have a legal right to disobey. What it does mean is that law enforcement officers should choose not to arrest agents, prosecutors should decide to drop criminal charges against defendants, judges should exercise leniency in sentencing, and juries should choose not to convict defendants (jury nullification).

This is unlikely to happen as a matter of course, especially in regimes regulated by defective principles of political morality. But at the very least, liberal democratic societies must provide all principled disobedients with the opportunity to defend their actions in trial. They do not always have this opportunity. For instance, should Snowden return to the United States to face justice for his leaks of classified information, the terms of the Espionage Act would bar him from attempting to justify his actions. Even where disobedients have the opportunity to defend their actions, the chances of succeeding are slim given that the injustice agents were responding to in the first place probably infect the courtroom, too, typically in the form of prejudice and its attending testimonial injustice.³¹

In any case, the reasons for action identified in the following chapters could ground justificatory defenses for principled disobedients of all kinds, whether civil or uncivil: a public-interest

defense on the basis of the duty of justice, a necessity defense similar to Brownlee's on the basis of the Samaritan duty, a fairness-based defense invoking the duty of fair play, and a dignitary defense on the basis of political association. Although I shall not further discuss these, they are all possible legal implications of this account of political duties to resist.